

States that Recognize Tenancy by the Entirety

About half of U.S. states and the District of Columbia recognize tenancy by the entirety as a form of property ownership. Tenancy by the entirety is similar to joint tenancy; however, this form of ownership is reserved for married couples. Some states recognize same-sex partners as tenants by the entirety, too, as long as they have registered with the state.

Certain states have stipulations regarding tenancy by the entirety. In Alaska, Indiana, Kentucky, New York, North Carolina, Oregon, and Rhode Island, for example, tenancy by the entirety ownership applies to real property only. Illinois allows it for homestead property. In Michigan, married couples' joint tenancy is consequentially tenancy by the entirety. And in Ohio, tenancy by the entirety is only valid if created before April 4, 1985.

States that Recognize Tenancy by the Entirety Ownership	
Alaska	Missouri
Arkansas	New Jersey
Delaware	New York
District of Columbia	North Carolina
Florida	Ohio
Hawaii	Oklahoma
Illinois	Oregon
Indiana	Pennsylvania
Kentucky	Rhode Island
Maryland	Tennessee
Massachusetts	Vermont
Michigan	Virginia
Mississippi	Wyoming